Quaker Valley Generative AI Policy: Data and Student Privacy Passages

Excerpted verbatim from *Policy 815.1 – Use of Generative Artificial Intelligence in Education (Quaker Valley School District, Pennsylvania; Book Policy Manual, status "Adopt / Second Reading")*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text. The source is a second-reading draft with visible editing remnants; passages are quoted as the text appears. Reference-number footnote markers are omitted.

Authority (excerpt)

Source: PDF page 1

The Board directs that the use of Generative AI in the educational and workplace environment shall be limited to approved purposes and shall comply with applicable state and federal laws, regulations, Board policies, administrative regulations and school rules including, but not limited to, the Family Educational Rights and Privacy Act (FERPA), the Individuals with Disabilities Education Act (IDEA), the Americans with Disabilities Act (ADA), the Children's Internet Protection Act (CIPA), the Children's Online Privacy Protection Act (COPPA), as well as Board policies related to … student records, personnel records, … data security …

The District shall not be responsible for any inaccuracies, data loss, dissemination, alteration, or unauthorized charges resulting from the use of Generative AI tools.

Definitions (excerpt)

Source: PDF page 2

Personally Identifiable Information (PII) - Information that identifies or could reasonably identify a student or employee, including information protected under FERPA, IDEA, state law, personnel confidentiality requirements, or District policy.

Training Data – the collection of information used to teach an AI model how to make predictions, decisions or recognize patterns.

Delegation of Responsibility (excerpt)

Source: PDF pages 2–3

Procured Generative AI tools and resources used in district schools and programs shall be evaluated and authorized on an ongoing basis for age-appropriateness, bias, privacy protections, accessibility standards and data security.

The District prohibits the use of personally identifiable information of students and employees while using Generative AI websites, tools, or applications, not specifically procured by the District.

The District prohibits the use of personally identifiable information of students and employees while using Generative AI websites, tools, or applications that have been procured by the District unless specific authorization has been granted by the Superintendent, or designee.

The vetting process shall include a review of the tool's privacy policy, data storage practices, training and data policies, and compliance with FERPA.

The district solicitor, in coordination with the Director of Innovation and/or the Director of IT, shall evaluate new and existing vendor contracts , collective bargaining agreements and related agreements for impacts related to district use of Generative AI.

FERPA Compliance

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All teachers, administrators, and staff are required to adhere strictly to the regulations outlined in the Family Educational Rights and Privacy Act (FERPA) when utilizing any Generative AI resources. Use of student information in Generative AI shall comply with FERPA and the district's Generative AI approval procedures established under this policy.

Grading Student Work (excerpt)

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Teachers shall ensure that personally identifiable student information and records are kept secure, in compliance with FERPA, when using such Generative AI technology.

Professional Development (excerpt)

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Where applicable, and when appropriate, the District shall provide professional development on the appropriate use of Generative AI, focusing on instructional integration, data privacy, legal compliance, and ethics.

Generative AI Use in Operations (excerpt)

Source: PDF page 5

Employees shall not input confidential or personally identifiable district data into any Generative AI tool unless explicitly authorized and approved through district procedures.